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A manual of Nuer law

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When the negotiations over the cattle are finished, the parties go outside for the feasting which follows. There is no prohibition on the two families eating together,¹ but the bridegroom himself and his *gwan twac* are not expected to eat of the meat or drink of the beer provided by the bride's people. They are allowed to join in the dancing, and the bride and her *ngi nyal* appear for the first time on the scene and enter the dance. The bride wears a black skin known as *twac cara*, usually the skin of a black calf.

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After the dancing is over, those who are not closely related to either party go home, but the legal representatives of the bridegroom and the bride's family and some of their close kinsmen, both male and female, go into a hut specially prepared for them which is known as the *dwil koam* for the occasion. There they sit all night joking and conversing with their hosts until dawn. Another hut, known as the *dwil twacni* or *dwil kwen*, is set aside for the young people of both parties, and the bride and bridegroom, their *gwan twac* and *ngi nyal*, sit there with their friends and coevals singing and exchanging courting badinage all night through. This completes the ceremony known as *twoc*.² The marriage is not supposed to have been consummated,  94 but has acquired by this time a degree of legality. Some Nuer say that the marriage is now legal in the sense that, were another man to have intercourse with the bride, full compensation for adultery could be claimed by the bridegroom. Lak and Thiang Nuer at any rate say that the significant act which confirms the status of the bride as a wife and which subsequently will be recognized in law, is the ceremony known as *yier nyal*, which takes place on the evening immediately after the conclusion of the negotiations for the cattle, when the bride, and also her brothers and sisters present, are rubbed with butter by the *gwan buthni* of the bridegroom. The legal status of the bride

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in relation to the bridegroom and his family at this point in the social and ritual processes of marriage (and it must be remembered that the bridewealth has not necessarily yet been transferred in full to the bride's family) is a controversial subject and one which is sometimes disputed in legal arguments. The subject of the legality of marriage is discussed later.

¹ An ox is sacrificed and the meat divided between the bride's people and those of the bridegroom in a formal manner. The bulk of the meat is given to the bridegroom's family, and much of it is taken back to their home to share with the old people who have not been able to attend the ceremony.

² The account of the *twoc* ceremony given by Professor Evans-Pritchard does not differ in any substantial way from my own, but he mentions certain rites which take place on the same day which I have not myself witnessed but which I have heard Nuer mention when describing the ceremonial. One is the ceremony in which the bridegroom and his followers rush the homestead of the bride and he tries to spear the *buor* or mud hearth of his future mother-in-law, while the bride's brothers and the young men of her group try to stop him and to wrest from him his special wedding stick or *dang*. This and other rites symbolize the potential opposition between the two parties and the resistance of the bride's people to the demands of the bridegroom, and the final removal of their resistance by the payment of cattle. All such rites, although not always performed and often substantially different in one part of Nuerland from those performed in another, are part of the enactment of marriage and are highly symbolic of the conventional attitude which both parties are expected to display. From the legal point of view they are significant in emphasizing these attitudes and explaining the rules and conventions which govern the social relations subsisting between relatives-in-law. They are not, of course, the subject of subsequent litigation.

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